THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH (COURT-II), CHANDIGARH

CA (CAA) No. 38/Chd/Chd/2024
(1st Motion)

Under Sections 230 to 232 of the Companies Act, 2013 read with Rule 3 and 5 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and Rule 11 of the National Company Law Tribunal Rules, 2016

IN THE MATTER OF SCHEME OF AMALGAMATION OF:

IND-SWIFT LIMITED
Registered Office: 781, Industrial Area,
Phase II, Chandigarh-160002
CIN: L24230CH1986PLC006897
PAN: AAACI6100L.

…Applicant Company No. 1/ Transferor Company

And

IND-SWIFT LABORATORIES LIMITED
Registered Office: SCO 850, Shivalik Enclave,
NAC, Manimajra, Chandigarh-160101
CIN: L24232CH1995PLC015553
PAN: AAACI6306G

.....…Applicant Company No. 2/ Transferee Company

Order delivered on: 03.01.2025

Coram: HON'BLE MR HARNAM SINGH THAKUR, MEMBER (JUDICIAL)
HON'BLE MR UMESH KUMAR SHUKLA, MEMBER (TECHNICAL)

For the Applicant Companies: Mr. Anand Chhibbar, Senior Advocate with Mr. Vaibhav Sahni, Advocate, Mr. G.S. Sarin, PCS, Ms. Swati Vashisht, PCA.

Per: Mr. Harnam Singh Thakur, Member (Judicial)
Mr. Umesh Kumar Shukla, Member (Technical)

ORDER

This is a Joint First Motion Application 2013 (hereinafter referred to as the "Application") filed under Section 230-232 of the Companies Act, 2013 (hereinafter

referred to as the "**Act**") read with Rule 3 and 5 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (hereinafter referred to as the "**CAA Rules**") and Rule 11 of the National Company Law Tribunal Rules, 2016 (hereinafter referred to as the "**NCLT Rules**") by **Ind-Swift Limited** (hereinafter referred to as the "**Applicant Company No.1**" or "**Transferor Company**") and **Ind-Swift Laboratories Limited** (hereinafter referred to as the "**Applicant Company No.2**" or "**Transferee Company**") (hereinafter Applicant Company No.1 and 2 collectively referred to as the "**Applicant Companies**") seeking approval of the Scheme of Amalgamation amongst the Applicant Companies and their respective Shareholders and Creditors (hereinafter referred to as the "**Scheme**"). The copy of the Scheme is attached as Annexure A-1 of the Application.

2. The Applicant Companies have prayed to issue the directions for convening meetings of the Equity Shareholders & Unsecured Creditors of the Transferor Company & Transferee Company; dispensing with the requirement of convening meetings of Preference Shareholders & Secured Creditors of the Transferor Company and Secured Creditors of the Transferee Company; newspaper publication of the notice of the meeting; sending the notices to statutory authorities and regulators seeking their representation if any, on the Scheme.

3. The Applicant Companies have their respective registered offices in the Union Territory of Chandigarh. Hence both the Companies are under the territorial jurisdiction of this Bench.

FACTS OF THE CASE

4. The facts of the case, as stated in the Application, are summarised below:

(i) The Transferor Company, Ind-Swift Limited, was incorporated on 06/06/1986, and is having its Registered office at 781, Industrial Area, Phase II, Chandigarh India, 160002. The copy of its Master Data, as available on the web portal of the Ministry of Corporate Affairs, is annexed as Annexure A-2 of the Application. As on the appointed date i.e. 31.03.2024, its Authorized Share Capital is Rs.40 crore divided into 7.50 crore Equity Shares of Rs.2/- each amounting to Rs.15 crore & 25 lakh Cumulative Redeemable Preference Shares of Rs.100/- each amounting to Rs.25 crore and Issued, Subscribed and Paid-up Share Capital is Rs.25,03,29,306/ divided into 5,41,64,653 Equity Shares of Rs.2/- each amounting to Rs.10,83,29,306/- & 14,20,000 Cumulative Redeemable Preference Shares of Rs.100/- each amounting to Rs.14,20,00,000/- and there is no change in its capital structure since the appointed date. It is engaged in the business of manufacturing pharmaceutical products. Its main objects, as set out in its Memorandum of Association, are as under:

1. To carry on the business of deriving, formulating, producing, manufacturing, preparing, processing, mixing, compounding, refining, marketing, distributing, selling and trading pharmaceuticals, chemicals, medicine and drugs of all kinds, specifications and descriptions; and to do so especially in respect of all kinds of analgesics and antipyretics.

2. To carry on the business of purchasing, producing, manufacturing, preparing, processing, mixing, compounding, refining, marketing, distributing, selling and trading in all classes and kinds of raw material ingredients, mixtures, compounds and derivatives connected to, intermediate 1in or associated with manufacture, production and sale of pharmaceuticals, chemicals, medicines and drugs.

3. To carry on the business of manufacturing drugs and medicines etc. on behalf of others.

4. To work and act as examiners of pharmaceuticals, medicines and drugs manufactured by the manufacturers and others including Government, Semi-Govt.

bodies and also to carry on the profession of dathologists and examiner of soils & materials.

5. To carry on business as dealers in and manufacturers of surgical scientific equipments, appliance, accessories of all types and descriptions.

6. To carry on the business of and dealers in the chemicals, chemical compounds (organic and inorganic) in all forms, and chemical products of any nature and kind.

7. To carry on business as manufacturers of and dealers in all kinds of proprietary products, hair, skin, natl and other beauty preparations, deodorants, aerosol and pump-spray products, baby products, petroleum and mineral oil products, and products, bath products, care products, cotton swabs, family planning appliances, hair dyes, pigments, varnishes, essential oil; detergents insecticides, otl, oleaginous, vaporaceous, saponaceous substance, beauty specialties, preparation, acids and accessories of every description whether medicated, antiseptic or not, unguents ingredients or accessories thereof and other materials.
8. To carry on business as manufacturers of, and dealers in, all kinds of raw and finished cosmetics, perfumes and essences, dentifrices, lotions, extracts, greases, creams, salves, ointments, preparations, pomades, powders, powders unguents, eau de cologne, totilet requisites and preparations, cleansing compounds.

8a. To carry on the business of manufacturers, producers, processors, contractors, dealers, importers exporters, in milk and all types of milk products, dairy products, bakery products, confectionery, sweets, diet products, to set-up, purchase, hire, lease, milk procurement centres, milk depots, complete dairy plants, laboratories, cold stores, warehouse, workshops, dairy yards, cattle farms, breeding farm, Cattle Colonies, feed processing factories, seed growing farms and agencies, artificial insemination centres.

8b. To grow, cultivate, plant, produce, process, deal, breed, buy, sell, import, export, make marketable and otherwise deal in agriculture, horticultural farm produce organic, botanical farming, organic fertilizer, and other establishments, to extracts by products, derivatives, derivatives whether edible pharmaceuticals medicines or any other kind or nature whatever and food preparations of every kinds and description and services required for buying testing, grading, processing manufacturing packing, storing and marketing of any of aforesaid product or services Further

The clause 13 of its Memorandum of Association allows it to amalgamate with other companies as under:

"13. To amalgamate with any other Company having objects altogether or in part similar to those of this Company or otherwise."

(ii) The Transferee Company, Ind-Swift Laboratories Limited, was incorporated on 04/01/1995 and is having its registered office at SCO 850, Shivalik Enclave, NAC, Manimajra, Chandigarh, India, 160101. The copy of its Master Data, as available on the web portal of Ministry of Corporate Affairs, is annexed as Annexure A-15 with the Application. As on the appointed date i.e. 31.03.2024, its Authorized Share Capital is Rs.60 crore divided into 6 crore Equity of Rs.10/- each and Issued, Subscribed and Paid-up Share Capital is Rs.59,08,68,600/ divided into 5,90,86,860 Equity of Rs.10/- each. Although, it has increased its Authorized Share Capital on 21.06.2024 to Rs.100 crore divided into 10 crore Equity of Rs.10/- each, but there is no change in is Paid-Up Share Capital since the appointed date. It is engaged in the business of manufacturing and marketing of pharmaceuticals related products. Its main objects, as set out in its Memorandum of Association, are as under:

1. To carry on the business of deriving, formulating, producing, manufacturing, preparing, processing, mixing, compounding, refining, marketing, distributing, selling and trading pharmaceuticals, chemicals, medicines, parental, medical aids instruments, surgical disposables, medical disposables, disposable syringes, lab. Regents, chemicals other healthcare products and drugs of all kinds, specifications and descriptions and to do so especially in respect of all kinds of analgesics and antipyretics.

2. To carry on the business of purchasing, -producing, manufacturing, preparing, processing, mixing, compounding, refining, marketing, distributing, selling and trading in all classes and kinds of raw material ingredients, mixtures, compounds and derivatives connected to, intermediate in or associated with the manufacture, production and sale of pharmaceuticals chemicals, medicines and bulk drug and intermediate.

3. To carry on the business of manufacturing drugs and medicines on behalf of others.

4. To work and act as examiners of pharmaceuticals, medicines and drugs manufactured by the manufactures and others including. Government, Semi-Govt.

bodies and also to carry on the profession of pathological and examiner of soil and materials.

5. To carry on business as dealers in and manufactures of surgical scientific equipments, appliance, accessories of all types and descriptions.

6. To carry on the business of and dealers in chemicals, chemical compounds (organic and inorganic) in all forms, and chemical products of any nature and kind.

7. To carry on business as manufacturers of and dealers in all kinds of proprietary products, hair, skin, nail and other beauty preparations, deodorants, aerosol and pump-spray products, bony products, petroleum and mineral oil products, chemicals, acids, and alkalis, all kinds of perfumery and other compounds, preparations, materials, and products, bath products, care products, cotton soaps, family planning appliances, hair dyes, pigments, varnishes, essential oil, detergents, insecticides, oil, oleaginous vaproaceous, saponaceous substance, beauty specialties, preparations acids and accessories of every description whether medicated antiseptic or not, unguents ingredients or accessories thereof and other materials.

8. To carry on business as manufacturers of and dealers in, all kinds of raw and finished cosmetics, perfumes and essences, dentifrices, lotions, extracts, greases, creams, salves, ointments, preparations,' pomades, powders unguents eau de cologne, toilet requisites and Preparations, cleansing compounds."

The clause 22 of its Memorandum of Association allows it to amalgamate with other companies as unde:

"22. Subject to the provisions of Section 391 to 394 of the Companies Act; 1956 to amalgamate or to enter into partnership or into any arrangement for sharing profits, union or interest, co-operation, joint venture or reciprocal with any person or persons or company or companies carrying on or engaged in any business which the company is authorized to carry on."

(iii) The copy of the Memorandum & Articles of Association of the Transferor Company and Transferee Company are annexed as Annexure A-3 and Annexure A-16 with the Application.

(iv) The copy of Audited Financial Statements for the year ended on 31.03.2024 of the Transferor Company and Transferee Company are annexed as Annexure A-10 and Annexure A-21 with the Application. The copy of

Unaudited Financial Statements for the period ended on 30.06.2024 of Transferor Company and Transferee Company are annexed as Annexure A-11 and Annexure A-22 with the Application.

(v) The List of Directors of the Transferor Company and Transferee Company are annexed as Annexure A-12 and Annexure A-23 with the Application. The Certified copy of the Independent Directors' Report and Certified copy of Audit Committee Report is annexed as Annexure A-13 and Annexure A-24 with the Application. The Board of Directors of the Transferor Company and Transferee Company considered and approved the Scheme at their respective meetings held on 25.09.2023. However, the Stock Exchanges made certain observations in the said Scheme, and accordingly, the Board of Directors of the Transferor Company and Transferee Company, considering the observations, modified and approved the said Scheme vide Resolution dated 08.03.2024, which was further modified and finally approved by the Board of Directors of the Transferor Company and Transferee Company at their respective meetings held on 18.05.2024. A decision was taken during these meetings to file the captioned Application before this Tribunal, in order to obtain the necessary Orders under the provisions of Section 230-232 of the Act. Further the Board of Directors of the Transferor Company in their meeting dated 13.08.2024 have authorised Sh. Pardeep Verma to file the Petition on its behalf. The copy of the above resolutions passed by the Board of Directors of the Transferor Company and Transferee Company are annexed as Annexure A-14 and Annexure A-25 with the Application.

(vi) The shares of both the Applicant Companies are listed on BSE Limited (hereinafter referred to as the "**BSE**") and National Stock Exchange of India Limited (hereinafter referred to as the "**NSE**"). The Applicant Companies in accordance with Regulation 37 of the Securities and Exchange Board of India (Listing Obligations and Disclosure Requirements) Regulations, 2015 (hereinafter referred to as the "**SEBI Regulations**") and SEBI Master Circular No. SEBI/HO/CFD/POD-2/P/CIR/2023 /93 dated June 20, 2023 (hereinafter referred to as the "**SEBI Master Circular**"), had applied to the BSE & NSE for their no objection to the proposed Scheme. The BSE vide its letter dated 30.09.2024 & NSE vide its letter dated 03.10.2024, have provided their Observation Letter Copies of the Observation Letter dated 30.09.2024 issued by BSE and Observation Letter dated 03.10.2024 issued by NSE (annexed as Annexure A-26 with the application) containing no objection to the Scheme as below:

Observations by BSE:

"1. The Company shall disclose all details of ongoing adjudication & recovery proceedings, prosecution initiated, and all other enforcement action taken, if any, against the Company, its promoters, and directors, before Hon'ble NCLT and shareholders, while seeking approval of the Scheme.

2. The Company shall ensure that additional information, if any, submitted by the Company after filing the Scheme with the Stock Exchanges, from the date of receipt of this letter, is displayed on the websites of the listed Company and the Stock Exchanges.

3. The Company shall ensure compliance with the SEBI circulars issued from time to time

4. The Companies involved in the Scheme shall duly comply with various provisions of the SEBI master Circular and ensure that all the liabilities of Transferor Company are transferred to the Transferee Company.

5. *Companies are advised that the information pertaining to all the Unlisted Companies involved, if any, in the scheme shall be included in the format specified for abridged prospectus as provided in Part E of Schedule VI of the ICDR Regulations, 2018, in the explanatory statement or notice or proposal accompanying resolution to be passed, which is sent to the shareholders for seeking approval.*

6. *Companies shall ensure that the financials in the scheme including financials considered for valuation report are not for period more than 6 months old.*

7. *Companies shall ensure that the details of the proposed scheme under consideration as provided to the Stock Exchanges shall be prominently disclosed in the notice sent to the Shareholders.*

8. *The Companies are advised to disclose the following as a part of explanatory statement or notice or proposal accompanying resolution to be passed to be forwarded by the companies to the shareholders while seeking approval w/s 230 to 232 of the Companies Act 2013:*

    - *Details of asset, liabilities, net worth and revenue of the companies involved, pre and post scheme.*
    - *Impact of Scheme on revenue generating capacity of Transferee Company.*
    - *Need and rationale of the scheme, synergies of business of the companies involved in the scheme, impact of the scheme on the shareholders and cost benefit analysis of the scheme.*
    - *Value of assets and liabilities of Transferor Company that are being transferred to the Transferee Company.*
    - *Both companies shall obtain shareholders approval by way of special resolution passed through e voting. Further, the companies shall proceed only if the votes cast by the public shareholders in favor of the proposal are more than the number of votes cast by the public shareholders against it.*

9. *Companies shall ensure that applicable additional information to be submitted to SEBI along with the draft scheme of arrangement and documents requested via Query No. 09 dated October 16, 2023, for Ind-Swift Limited and query No. 09 dated October 16, 2023 for Ind-Swift Laboratories Limited shall form part of disclosures to shareholders."*

10. *Companies are advised that the proposed equity shares to be issued in terms of the "Scheme" shall mandatorily be in demat form only.*

11. *Company shall ensure that the "Scheme" shall be acted upon subject to the applicant complying with the relevant clauses mentioned in the scheme document.*

12. Company shall ensure that no changes to the draft scheme except those mandated by the regulators/ authorities / tribunals shall be made without specific written consent of SEBI.

13. Companies are advised that the observations of SEBI/Stock Exchanges shall be incorporated in the petition to be filed before Hon'ble NCLT and the Company is obliged to bring the observations to the notice of Hon'ble NCLT.

14. Companies are advised to comply with all applicable provisions under the Companies Act, 2013 rules and regulations issued thereunder including obtaining the consent from the creditors for the proposed scheme.

15. It is to be noted that the petitions are filed by the company before NCLT after processing and communication of comments/observations on draft scheme by SEBI/stock exchange. Hence, the company is not required to send notice for representation as mandated under section 230(5) of Companies Act, 2013 to SEBI again for its comments/ observations/ representations.

Observations by NSE:

a*) The Company shall ensure to disclose all details of ongoing adjudication & recovery proceedings, prosecution initiated, and all other enforcement action taken, if any, against the Company, its promoters, and directors, before Hon'ble NCLT and shareholders, while seeking approval of the Scheme.*

b) The Company shall ensure that additional information, if any, submitted by the Company after filing the Scheme with the Stock Exchanges, from the date of receipt of this letter, is displayed on the websites of the listed Companies and the Stock Exchanges.

c) The Company shall ensure compliance with the SEBI circulars issued from time to time

d) The entities involved in the Scheme shall duly comply with various provisions of the applicable SEBI Circulars and ensure that all the liabilities of Transferor Company are transferred to the Transferee Company.

e) The Company shall ensure that information pertaining to all the Unlisted Companies involved, if any, in the scheme shall be included in the format specified for abridged prospectus as provided in Part E of Schedule VI of the ICDR Regulations, 2018, in the explanatory statement or notice or proposal accompanying resolution to be passed, which is sent to the shareholders for seeking approval.

f) The Company shall ensure that the financials in the scheme including financials considered for valuation report are not for period more than 6 months old.

g) The Company shall ensure that the details of the proposed scheme under consideration as provided by the Company to the Stock Exchanges shall be prominently disclosed in the notice sent to the Shareholders.

h) Both the Companies involved in the Scheme shall ensure to disclose the following, as a part of explanatory statement or notice or proposal accompanying resolution to be passed to beforwarded by the company to the shareholders while seeking approval u/s 230 to 232 of the Companies Act 2013:

- *Details of asset, liabilities, net worth and revenue of the companies involved, pre and post scheme.*
- *Impact of Scheme on revenue generating capacity of Transferee Company.*
- *Need and rationale of the scheme, synergies of business of the companies involved in the scheme, impact of the scheme on the shareholders and cost benefit analysis of the scheme.*
- *Value of assets and liabilities of Transferor Company that are being transferred to the Transferee Company.*
- *Both companies shall obtain shareholders approval by way of special resolution passed through e voting. Further, the companies shall proceed only if the votes cast by the public shareholders in favor of the proposal are more than the number of votes cast by the public shareholders against it.*

i) The Company shall ensure that all the applicable additional information shall form part of disclosures to shareholders, which was submitted by the Company to the Stock Exchange as per Annexure M of Exchange checklist.

j) The Company shall ensure that the proposed equity shares to be issued in terms of the "Scheme" shall mandatorily be in demat form only.

k) The Company shall ensure that the "Scheme" shall be acted upon subject to the applicant complying with the relevant clauses mentioned in the scheme document.

l) The Company shall ensure that no changes to the draft scheme except those mandated by the regulators/ authorities / tribunals shall be made without specific written consent of SEBI.

m) The Company shall ensure that the observations of SEBI/Stock Exchanges shall be incorporated in the petition to be filed before NCLT and the Company is obliged to bring the observations to the notice of NCLT.

n) The Company shall ensure that all the applicable provisions under the Companies Act, 2013 and the rules and regulations thereunder are complied, including obtaining the consent from the creditors for the proposed scheme.

o) It is to be noted that the petitions are filed by the company before NCLT after processing and communication of comments/observations on draft scheme by

SEBI/stock exchange. Hence, the company is not required to send notice for representation as mandated under section 230(5) of Companies Act, 2013 to SEBI again for its comments / observations / representations.

(vii) As per Para 10 of SEBI Master Circular applicable to the present Scheme, the Applicant Companies will provide voting by the Equity Shareholders (including Public Shareholders) through e-voting and will disclose all material facts in the explanatory statement, to be sent to the Shareholders in relation to the said Resolution. Further, pursuant to applicable provisions of Para 10 of the SEBI Master Circular, Regulation 44 of SEBI Regulations and pursuant to Section 108 of the Companies Act, 2013 read with Companies (Management and Administration) Rules, 2014 and other applicable provisions of Companies Act, 2013, the Applicant Companies will provide E-voting facility to all its Shareholders (including Public Shareholders) for wide participation and Shareholders would be in a position to vote on the resolution for approving Scheme.

(viii) The Appointed date means the 31.03.2024 or such other date as may be approved by the National Company Law Tribunal of relevant jurisdiction or by such other competent authority having jurisdiction over the Transferor Company and the Transferee Company. The effective date means the date on which certified copy of the order of the National Company Law Tribunal under section 230 and 232 of the Companies Act, 2013 sanctioning the Scheme is filed with the Registrar of Companies by both the Companies after obtaining the sanctions, orders or approvals referred to in clause 3 of Part-IV of this Scheme on receipt or any other government approval to the transfer of the undertaking and/ or the Scheme, if required under applicable law.

(ix) The rationale of the Scheme is as below:

This Scheme of Amalgamation would result, inter-alia, in the following synergies for both the Transferor and Transferee companies and thereby preserving and creating value for its shareholders, creditors and various other stakeholders:

***(a) Expansion into the Formulation Business**:*

The Transferee Company had been engaged in the APl business and recently exited the API business. It intends to focus and grow the formulations business which offers significant potential and growth opportunities going forward. To establish its presence in the formulations business, it has already made certain investments in two joint ventures. Since the Transferor company s engaged in Formulations business for a while and has already build capacity for the same, the Proposed Amalgamation would augment and spearhead this strategic shift of the Transferee Company into formulations business inorganically by combining the present formulations business of the Transferor Company along with access to its resources and expertise, enabling a more comprehensive and competitive player in the pharmaceutical formulations market.

(b) Takeover / Discharge of the debt of the Transferor Company and thereby relieve it from financial stress:

The Transferor Company has been under severe financial stress and has been facing challenges in discharging its debt obligations, with a significant lump-sum payment due in March 2024. The Transferor Company has in the past made numerous efforts to raise funds to fulfil its debt repayment obligations without much success and thereby pushing the Transferor company to brink of an IBC process which may lead to disintegration of the promising formulation business and various stakeholders losing their value The Proposed Amalgamation will offer a bail out to the Transferor company from its debt obligation by providing the necessary funds to discharge its debt and ensure continuity of its formulation business and preservation of shareholder value, alleviating creditors/ lenders pressure and ensuring a stronger / debt free merged entity ready for the long haul.

(c) Value creation for Shareholders:

The Proposed Amalgamation is expected to contribute to economic value creation for both Transferor and Transferee companies. The shareholders of Transferor company will benefit from reduced finance costs, improved profitability and additional resources to fund the growth of formulations business. The shareholders of the Transferee company are expected to benefit from growth in the formulations business. Shareholders of both Company are also likely to benefit from the increased value created through business synergies, cost savings, reduction in

administrative / operating costs and improved financial performance of the merged entity.

(d) Simplification of Group structure:

The Proposed Amalgamation would lead to simplification of the Group structure by reducing one listed company, and thereby eliminating inefficiency and cash trap on distribution of profits to shareholders in future. This will also lead to reduction of higher compliance/ reporting burden and administrative cost by reduction of one listed company. All of this will result in higher operational efficiencies and maximize value for the shareholders of both the companies.

(e) Focused management, synergies, and Growth prospects:

The Proposed Amalgamation would not only create economies of scale but also simplify management and strategic focus, leading to a better long-term performance. The Amalgamation will facilitate better and more efficient control over the business and financial conduct of the merged company allowing a more streamlined and coordinated approach to governance and strategic decision-making. The combined entity, on the back of its financial stability is likely to attract more opportunities for organic and inorganic growth viz., partnerships, acquisitions, and market expansion, translating into enhanced financial prospects.

In summary, the amalgamation of the Transferor Company with the Transferee Company is driven by strategic business objectives of preserving businesses of both companies, build strong foundation and achieve market competitiveness by combing the collective strength of both the companies, achieving business and operational synergies & efficiencies, improved financial stability and performance, and thereby preserving and creating long-term value for its various stakeholders.

This comprehensive rationale as above underscores the strategic motivations, expected benefits, and the context surrounding the Proposed Amalgamation, highlighting its alignment with both the companies' objectives and the interests of their various stakeholders.

(f) Due to the aforesaid reasons, it is considered desirable and expedient to amalgamate the Transferor Company with Transferee Company in accordance with this Scheme, pursuant to Section 230~ 232 of the Companies Act, 2013

(g) The amalgamation of the Transferor Company with the Transferee Company, pursuant to and in accordance with this Scheme, under Section 230 - 232 and other relevant provisions of the Companies Act, 2013 and applicable Rules of Companies (Compromises, Arrangements Amalgamations) Rules, 2016, subject to sanction of Hon'ble National Company Law Tribunal (NCLT) of relevant jurisdiction, shall take place with effect from the Appointed Date and shall be in compliance with Section 2(1B} of the Income Tax Act, 1961."

(x) The Board of Directors of both the Applicant Companies in their respective meetings held on 18.05.2024 have also approved the Valuation Report issued by Mr. Ajay Kumar Siwach, Registered Valuer- (Securities or Financial Assets), Registration No: IBBI/RV/05/2019/11412 and the fairness opinion dated 17.05.2024 as issued by Ekadrisht Capital Private Limited and 3Dimesnsion Capital Services Limited. The copy of the above Valuation Report and the fairness opinion is annexed as Annexure A-27 with the Application. As per the above Valuation Report, the Share Entitlement Ratio is as below:

> **"Ind Swift Laboratories Limited" (Transferee Company) shall issue and allot 15 (Fifteen) Equity Shares of Face Value of INR 10.00/- (Rupees Ten Each) each to Equity Shareholders of "Ind Swift Limited" (Transferor Company) for every 100 (One Hundred) Equity Share of Face Value of INR 2/- (Rupees Two Each) each held by them in the Transferor Company.**

The shares (both Equity and Preference) as per the Share Exchange Ratio shall be allotted to the Shareholders of the Transferor Company after the effective date and as the Board of Directors of the Transferee Company may determine.

(xi) The Statutory Auditors of both Transferor Company and Transferee Company have certified that the present Scheme is in conformity with the Accounting Standards as applicable. The Certificates with respect to the conformity of the accounting standards are annexed as Annexure A-28 with the Application.

(xii) The Directors of the Applicant Companies and their relatives have no material interests in the proposed Scheme except for commonality in shareholding, if any.

(xiii) The present Scheme does not involve corporate debt restructuring as per Section 230 (2)(c) of the Companies Act, 2013. In terms of Section 230(2) of the Companies Act, 2013, the Scheme does not envisage reduction of share capital of the Transferee Company. The Affidavit in terms of Section 230(2) is annexed as Annexure A-29 with the Application.

(xiv) The Applicant Companies do not fall within the ambit of any other sector specific regulator as per the affidavit annexed as the Annexure A-29 with the Application and therefore, no notice is required to be issued to any sectoral regulator under section 230(5) of the Act.

(xv) The provisions of the Competition Act, 2002 will not be applicable in the present case in view of the Clause 10 of the Competition (Criteria for Exemption of Combinations) Rules, 2024 issued by the Central Government on 09.09.2024, effective from 10.09.2024 (annexed as Annexure A-32 of the Application), reproduced below:

> "10. A merger or amalgamation of enterprises within the same group provided that the transaction does not result in change in control."

In the present case, the amalgamation is within the same group, as both the entities are being operated/ controlled by the common promoters. The affidavit with respect of the non-applicability of Competition Commission of India (hereinafter referred to as the "**CCI**") is annexed as Annexure A-31 of the Application.

(xvi) There are certain litigations pending in both the Applicant Companies, the details of which are mentioned in the affidavit annexed as Annexure A-33 of the Application. As per the list attached with the affidavit, there are 161 and

77 pending litigations against the Transferor Company and Transferee Company respectively as shown below:

LIST OF PENDING LITIGATION - TRANSFEROR COMPANY 136

S NO	CASE NO.	NAME OF CASES	PROVISION OF APPLICABLE ACT	PENDING AT
1	CS-370/2016	ISL VS JASVIR SINGH (COUNTER CLAIM)	SECTION 34 AND ORDER 39 OF CIVIL PROCEDURE CODE	DERABASSI COURT
2	COMP-15/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
3	COMP-16/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
4	COMP-18/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
5	COMP-20/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
6	COMP-22/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
7	COMP-475/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
8	COMP-512/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
9	COMP-487/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
10	COMP-19/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
11	COMP-17/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
12	COMP-21/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
13	COMP-14/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
14	COMP-930/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
15	COMP-928/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
16	COMP-530/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
17	COMP-564/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
18	COMP-478/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
19	COMP-477/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
20	COMP-256/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
21	COMP-254/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
22	COMP-238/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
23	COMP-476/2016	TAPAN VS ISL	Section 138 of Negotiable Instrument Act, 1881.	PENDING AT SOLAN
24	CS-51/2017	TAPAN VS ISL	U/S 37R1,2 CODE OF CIVIL PROCEDURE	PENDING AT SOLAN
25	CS-168/2016	TAPAN VS ISL	U/S26 CODE OF CIVIL PROCEDURE	PENDING AT SOLAN
26	CS-52/2017	TAPAN VS ISL	U/S 37R1,2 CODE OF CIVIL PROCEDURE	PENDING AT SOLAN
27	CS-156/2016	TAPAN VS ISL	CODE OF CIVIL PROCEDURE	PENDING AT SOLAN
28	CS-182/2017	SMART PACK VS ISL	CODE OF CIVIL PROCEDURE U/O 7	PENDING AT NALAGARH
29	INSOLVENCY/1/2016	KHANDELWAL EXTRACTION LTD. VS ISL	Order 39 of C.P.C.	CIVIL MATTER PENDING AT KANPUR (U.P.)
30		SHILPA THERAPEUTICS PVT LTD VS ISL	ARBITRATION MATTER	PENDING AT RANGAREDDY,TELANGANA COURT
31	EXECUTION-75/2023	DAGA POLYLAMINATORS VS ISL (EXE)	CPC U/S 37	PENDING AT MM COURT JODHPUR (RAJ.)
32	CS-9/2016	OM SAI ENTERPRISES VS ISL	CODE OF CIVIL PROCEDURE U/O 7 RULE 1 OF ECPC	PENDING AT NALAGARH
33	CWP-2131/2017	HARYANA MEDICAL ASSOCIATION VS ISL	Civil Writ Petition under Article 226 of the Constitution of India.	PENDING AT CHANDIGARH HIGH COURT.
34	CWP-2280/2020	P SHARMA VS CENTRAL BANK	Civil Writ Petition under Article 226 of the Constitution of India.	PENDING AT PHHC
35	LPA-1968/20	RAKESH AKHAR VS PRESIDING OFFICER &ISL	Letter Patents Appeal under Article 227 of the Constitution of India.	PENDING AT PHHC
36	CWP-8638/2022	ISL VS UNION OF INDIA	Civil Writ Petition under Article 226 of the Constitution of India.	PENDING AT PUNJAB & HARYANA HIGH COURT AT CHANDIGARH
37	CRM-M-51081/2021	KRISHAN LAL VS UT CHD & ISL	QUASHING PETITION UNDER SECTION 482 OF CODE OF CRIMINAL PROCEDURE, 1973	PENDING AT PUNJAB & HARYANA HIGH COURT AT CHANDIGARH
38	COMI-61/2024	MITHILESH HEALTHCARE VS ISL	U/S 420,465,467,468,471,379,120-B OF INDIAN PENAL CODE	PENDING AT CHANDIGARH COURT
39	PB20B0001317/S/00003	KALYAN PROJECTS CONST. COMPANY VS ISL	U/S17,18(I) Of MSME ACT 2006	MSME MOHALI
40		SPRINGS TRADING Co. VS ISL	U/S17,18(I) Of MSME ACT 2006	MSME MOHALI
41	MSEFC-18888/2023	C.J. GELATINE VS ISL	U/S17,18(I) Of MSME ACT 2006	MSME, BHOPAL , MADHYA PRADESH
42	CS/91/2016	SWATI SPENTOSE VS ISL	EXECUTION PETITION	GUJRAT (EXE. AT CHANDIGARH)
43	CSCJ-4284/2023	ISL V. RAJIV UPADHYAY	DAMAGES ORDER-7, 39,38	PENDING AT CHANDIGARH
44	CSCJ-1809/2022	SHAKTI CORPORATION VS ISL	ORDER 7 UNDER CIVIL PROCEDURE CODE	PENDING AT CHANDIGARH
45	CS/613248/2016	AVANT GARDE CLEAN ROOM VS ISL	ORDER 7 UNDER CIVIL PROCEDURE CODE	PENDING AT TIS HAZARI COURT DELHI
46	CSCJ-1724/2023	DLG FOOD SERVICES P. LTD. VS ISL	ORDER 7 UNDER CIVIL PROCEDURE CODE	PENDING AT CHANDIGARH
47	CSCJ-1724/2023	CHECKMATE SERVICES VS ISL	ORDER 7 UNDER CIVIL PROCEDURE CODE	PENDING AT CHANDIGARH
48	EXECUTION PETITION/48/2023	PERENNIAL MEDICARE VS ISL (2 CASES)	U/S 36, ORDER 21 R11 OF CIVIL PROCEDURE CODE	PENDING AT SOLAN

49	REG.CRI-2911/2014	CMHO VS M/S NAVNEET MEDICOS	DRUGS & COSMETICS ACT U/S 20/112	PENDING AT NAGAUR
50	CRI-1539/2014	STATE VS NARESH GUPTA	DRUGS & COSMETICS ACT U/S 16(i)(a), 17(a),17-B(d),17(d) and 82,83	PENDING AT PALI
51	COMA-285/2018	STATE VS SHAKTI KUMAR	DRUGS & COSMETICS ACT U/S 18(a)(i),17B,27(C),	MATTER IS PENDING AT JALANDHER
52	AOA/89/2021	UNION OF INDIA VS ISL UNIT-III	DRUGS & COSMETICS ACT U/S 18(a)(i)	MATTER IS PENDING AT MARGAO
53	CC-48828/2015	STATE V. DIVYESH BHAI & HIMAMTLAL & ORS.	DRUGS & COSMETICS ACT U/S 18(a),27	MATTER IS PENDING AT VADODARA
54	SPL.Case Drug Cosm.-800001/2015	STATE OF MAHARASHTRA VS SHANKAR MADHAV BODKE	DRUGS & COSMETICS ACT U/S 18(a)(i), 16(1)(a),34,	MATTER IS PENDING AT NANDED
55	CC-1200075/2014	THE DRUG INSPECTOR VS ISL	DRUGS & COSMETICS ACT U/S 18(a)(i) and 32	MATTER IS PENDING AT TIRUPPUR
56	R.C.C.-303288/2008	STATE OF MAHARASHTRA VS S.R. MEHTA	DRUGS & COSMETICS ACT U/S 18(a)(i),18-B,17&17B, 16,34 & 27,	MATTER IS PENDING AT NAGPUR
57	COMPLAINT-953/2015	STATE VS MANAGING DIRECTOR UNIT-II & ORS	DRUGS & COSMETICS ACT U/S 18(a)(i), 27(d)	MATTER IS PENDING AT SRINAGAR
58	COM.CASE-8063/2015	DRUG INSPECTOR VS MUKHTAR AHMAD MALIK & ORS	DRUGS & COSMETICS ACT U/S 18(a)(i)	MATTER IS PENDING AT ANATNAG
59	NDPS.S. CASE-12/2024	RAJESH KUMAR SINHA VS DR. G MUNJAL	DRUGS & COSMETICS ACT U/S 27(a), 27©,32	MATTER IS PENDING AT MUNGER
60		STATE VS ISL SAMBA JAMMU	DRUGS & COSMETICS ACT U/S 18(a)(i), 16(1)(a),	MATTER IS PENDING AT DAUSA
61	CRR-35/2018	STATE TH ROUGH DRUG INSPECTOR VS ARUN KATARIA	DRUGS & COSMETICS ACT U/S 18(a)(i) 27 C	MATTER IS PENDING AT MOGA
62	CR.REG.CASE-656/2020	STATE VS ISL	DRUGS & COSMETICS ACT U/S 18,16,27	MATTER IS PENDING AT BUNDI
63	CR.REG.CASE-10385/2014	STATE VS GORA DIST BY KAMLESH	DRUGS & COSMETICS ACT U/S 18(a)(i),18(a)(vi),18-A,18B,22(i)(CCA),22(i)(d),27(d), and 28-28A	MATTER IS PENDING AT UDAIPUR
64	CR.REG.CASE-32716/2017	STATE V. VISHAL ARORA & ISL	DRUGS & COSMETICS ACT U/S 18(a)(i)	MATTER IS PENDING AT JAIPUR
65	CC-1600089/2009	STATE VS PREET REMEDIES OTHERS	DRUGS & COSMETICS ACT U/S 18(a)(i), 18(b),27(d) and 28(a)	MATTER IS PENDING AT SALEM
66	CC-0400223/2017	DRUG INSPECTOR VS ISL AND ANOTHER	DRUGS & COSMETICS ACT U/S 27 18(a),(iv)	MATTER IS PENDING AT KOTHAGUDEM (TELANGANA)
67		COZYPLUS - MATHURA	DRUGS AND COSMETICS ACT	MATTER IS PENDING AT MATHURA
68	Appeal No. 137/138 of 2019	ISL VS U T EXCISE & TAXATION DEPTT.	VAT ACT 2005	MATTER PENDING AT VAT TRIBUNAL (APPEALS)
69	CWP-6809-2019	ISL VS UT CHANDIGARH	Civil Writ Petition under Article 226 of the Constitution of India.	MATTER PENDING AT CHANDIGARH HIGH COURT.
70	SLP/12162/2019	ADVISOR, UT CHD VS ISL	Article 136 of the Constitution of India. Indirect Taxes Matters: Value Added Tax	MATTER PENDING AT SUPREME COURT
71	PC-11/2023	STATE VS RAM TIRATH & OTHERS	U/S 12,13(1)(D),13(2) IPC 409,420,466,468,471,120-B OF INDIAN PENAL CODE, 1860 AND PREVENTION OF CORRUPTION ACT	MATTER PENDING AT CHANDIGARH
72		EXCISE & TAXATION DEPARTMENT U T CHD V. ISL		ASSESSMENT PROCEEDINGS 2010-2011
73	OA-5316/2017	IFCI (EDELWEISS) VS ISL	Section 19 in The Recovery Of Debts Due To Banks And Financial Institutions Act, 1993	FOR WITHDRAWAL
74	CSCJ-1477/2017	ISL VS CENTRAL BANK OF INDIA	SECTION 34 AND ORDER 39 OF CIVIL PROCEDURE CODE	PENDING AT, CHANDIGARH
75	CWP-1602/2022	ISL VS CENTRAL BANK OF INDIA	Civil Writ Petition under Article 226 of the Constitution of India.	Punjab & Haryana High Court
76		EXCISE TAXATION OFFICER V. ISL		PENDING AT ETO
77	CSCJ-1419/2024	ESTATE OFFICER V. MANCHANDA INDUSTRIES	SPECIFIC PERFORMANCE OF CONTRACT U/S 12, 39,38	SDM EAST, INDUSTRIAL AREA, CHANDIGARH
78	NACT/4939/2019	ISL VS CEMEX PHARMA	Section 138 of Negotiable Instrument Act, 1881.	CHANDIGARH COURT
79	CA-58/2024	ISL VS ZENITH DRUGS	CIVIL PROCEDURE CODE U/S 96	CHANDIGARH COURT
80	CRL MISC/129/2016	ISL VS MRINMOYEE MEDICA	Section 138 of Negotiable Instrument Act, 1881.	CHANDIGARH COURT
81	CR-AS/62/2022	ISL VS NITU SHARMA	Section 378 of Code of Criminal Procedure, 1973	CHANDIGARH COURT
82	CRM-22316/2015	ISL VS RAJEEV GUPTA 3 CASES	Section 378 of Code of Criminal Procedure, 1973	CHANDIGARH COURT
83	CWP-5347/2018	ISL VS PRESIDING OFFICER LABOUR COMMISSIONER	Civil Writ Petition under Article 226 of the Constitution of India.	CHANDIGARH COURT
84	CRR-27/2021	ISL VS SHREE GANESH PHARMA	Section 397 of Code of Criminal Procedure, 1973	CHANDIGARH COURT
85	CRR-23/2021	ISL VS THUAMI PHARMA	Section 397 of Code of Criminal Procedure, 1973	CHANDIGARH COURT
86	CRR-22/2021	ISL VS WELFARE PHARMACY	Section 397 of Code of Criminal Procedure, 1973	CHANDIGARH COURT
87	CRR-27/2021	ISL VS BINAYAK DRUG	Section 397 of Code of Criminal Procedure, 1973	CHANDIGARH COURT
88	CIVIL SUIT/78/2023	ISL VS ELDER LABS LTD	Section 27(2), 135 of Trade Marks Act	NALAGARH COURT
89	CIVIL Misc. Application/355/2023	ISL VS ELDER LABS LTD	Order 39 of Civil Procedure Code	NALAGARH COURT
90	CRIMINAL REVISION-68/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
91	CRIMINAL REVISION-69/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
92	CRIMINAL REVISION-70/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
93	CRIMINAL REVISION-71/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
94	CRIMINAL REVISION-72/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
95	CRIMINAL REVISION-73/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
96	CRIMINAL REVISION-74/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
97	CRIMINAL REVISION-75/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
98	CRIMINAL REVISION-76/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
99	CRIMINAL REVISION-77/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
100	CR.M.A-294/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
101	CR.M.A-295/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
102	CR.M.A-296/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
103	CR.M.A-297/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
104	CR.M.A-298/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
105	CR.M.A-299/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
106	CR.M.A-300/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
107	CR.M.A-301/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
108	CR.M.A-302/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
109	CR.M.A-303/2018	ISL VS TAPAN PET	U/S 397 of Code of Criminal Procedure, 1973	SOLAN COURT
110	COMI-32/2024	ISL VS SADHU SHARMA AND ORS.	U/S 403,405,406,409,415,418,421,422,424,120B of Indian Penal Code, 1860	CHANDIGARH COURT
111	WP©/361/2023)	ISL VS UNION OF INDIA	Civil Writ Petition under Article 226 of the Constitution of India.	HIGH COURT JAMMU
112	WP©/1874/2020 & WP©/1088/2020	ISL VS UNION OF INDIA TH SECRETARY OF FINANCE	Civil Writ Petition under Article 226 of the Constitution of India.	HIGH COURT JAMMU
113	CWP/8638/2022	ISL VS UNION OF INDIA	Civil Writ Petition under Article 226 of the Constitution of India.	HIGH COURT CHD
114	SLP©/034918-034180/2015	ISL VS STATE OF PUNJAB	Article 136 of the Constitution of India. Indirect Taxes Matters: Value Added Tax	SUPREME COURT
115	MA-001102-001107/2022	ISL JAMMU VS COMMR OF CEN EXC.JAMMU	Article 132 of the Constitution of India.	SUPREME COURT
116	NACT-5628/2024	ISL VS SHRI SAI PHARMA & ANR	Section 138 of Negotiable Instrument Act, 1881.	CHANDIGARH COURT

117	NACT-5627/2024	ISL VS RENGANATHAN PHARMACEUTICALS	Section 138 of Negotiable Instrument Act, 1881.	CHANDIGARH COURT
118	CR.MA/40026/2023	ISL VS STATE OF GUJRAT (DRUG MATTER)	QUASHING OF COMPLAINT U/S 482 CRPC	HIGH COURT GUJARAT
119	CRL-MP-7356/2023	DR RAMNEEK SINGH BEDI VS STATE OF RAJASTHAN (DRUG MATTER)	QUASHING OF COMPLAINT U/S 482 CRPC	HIGH COURT RAJASTHAN
120	NACT-8095/2024	ISL VS KRISHAN PHARMACEUTICALS	Section 138 of Negotiable Instrument Act, 1881.	CHANDIGARH COURT
121	NACT-8094/2024	ISL VS SHARANA SABAREESH DISTRIBUTORS	Section 138 of Negotiable Instrument Act, 1881.	CHANDIGARH COURT
122	NACT-6913/2024	ISL VS ISHAN MEDIPOINT & ANR	Section 138 of Negotiable Instrument Act, 1881.	CHANDIGARH COURT
123	NACT-6905/2024	ISL VS OM SAI AHUJA ENTERPRISES & ANR	Section 138 of Negotiable Instrument Act, 1881.	CHANDIGARH COURT
124	NACT-6907/2024	ISL VS SHREEMA PHARMA & ANR	Section 138 of Negotiable Instrument Act, 1881.	CHANDIGARH COURT
125	NACT-6912/2024	ISL VS SRI SAIRAMA MEDIALS & ANR	Section 138 of Negotiable Instrument Act, 1881.	CHANDIGARH COURT
126	NACT-6914/2024	ISL VS LAKSHMI SAI PHARMACEUTICALS	Section 138 of Negotiable Instrument Act, 1881.	CHANDIGARH COURT
127	NACT-6904/2024	ISL VS SUNSHINE AND HEALTHCARE	Section 138 of Negotiable Instrument Act, 1881.	CHANDIGARH COURT
128	NACT-6888/2024	ISL VS NEW MALLIKARJUNA MEDICALS AND SURGICALS AGENCIES	Section 138 of Negotiable Instrument Act, 1881.	CHANDIGARH COURT
129	NACT-28137/2013	ISL VS RAJINDER KR. BAID	Section 138 of Negotiable Instrument Act, 1881.	CHANDIGARH COURT
130	INVESTIGATION/ENQUIRY	-	Prevention of Money Laundering Act, 2002	Investigation/Enquiry of ED under PMLA, 2002 vide file no. ECIR/CD20-1/08/2020 against the Company
131	LPA-1968-2017	Rakesh Jakhar Vs Ind Swift Ltd.	UNDER SECTION 151 CPC	HIGH COURT CHANDIGARH
132	CWP-1231-2017 (O&M)	H M R A V/S STATE OF HARYANA & OTHERS	UNDER SECTION 151 CPC	HIGH COURT CHANDIGARH
133	CWP-5347-2018	Ind Swift Ltd. V/s. VIVEK VARNWAL	UNDR ARTICLES 226/227	HIGH COURT CHANDIGARH
134	LCC NO 6	O.P. Shrotriya v/s Ind swift Ltd	UNDER I.D. ACT UNDER SECTION-33C	LABOUR COURT AJMER
135	CW 26926/2024	IND SWIFT V/S. O.P. SHROTRIYA	UNDER ARTICLE 226	HIGH COURT JAIPUR
136	35/2023	Roop Lal & Other V/s Indswift ltd	UNDER I.D. ACT SECTION 2A, 33, 10, 33C2	LABOUR COURT SHIMLA
137	FAO 180/2015	Ind Swift Ltd. v/s. ESIC	UNDER SECTION 151 CPC	HIGH COURT CHANDIGARH
138	S.A. NO. 01/2024	J.sheshu Babu V/s. Ind Swift Ltd.	UNDER SHOP AND ESHTABLISHMENT ACT	LABOUR OFFICE ANANTHAPURAMU
139	1479, dated 20/08/24	Ajay v/s. ind Swift Ltd	UNDER I.D. ACT	LABOUR OFFICE HISAR
140	ISL/AY 2013-14	E-Assesment for AY 2013-14	Section 148 of Income Tax Act, 1961	Notice issued by Assesing Officer and Company has filed writ petition in Punjab and Haryana High Court, Chandigarh
141	ISL/AY 2015-16	E-Assesment for AY 2015-16	Section 148 of Income Tax Act, 1961	Notice issued by Assesing Officer and Company has filed writ petition in Punjab and Haryana High Court, Chandigarh
142	ISL/AY 2023-24	E-Assesment for AY 2023-24	Section 143 (2) of Income Tax Act, 1961	Assesing Officer Range Circle 1(1), Chandigarh
143	6/2014-15	Appeal filed by the Company for AY 2011-12 with CIT(A)	Section 153(A) read with section 143(3) of Income Tax Act, 1961	Pending with CIT(A), Gurgaon
144	7/2014-15	Appeal filed by the Company for AY 2012-13 with CIT(A)	Section 153(B) read with section 143(3) of Income Tax Act, 1961	Pending with CIT(A), Gurgaon
145	348161281050521	Appeal filed by the Company for AY 2018-19 with CIT(A)	Section 143(3) of Income Tax Act, 1961	Pending with CIT(A), Gurgaon
146	2011-12	Sales Tax Demand	Chandigarh VAT Act	VAT Tribunal, Chandigarh
147	2015-16	Sales Tax Demand	Chandigarh VAT Act	VAT Tribunal, Chandigarh
148	2013-14	Excise Duty	Central Excise Act 1944	Commisioner (Appeals), Ludhiana
149	2016-17, 2017-18	Excise Duty	Central Excise Act 1944	CESTAT, Chandigarh
150	2014-2015	Service Tax	Service Tax Act	CESTAT, Chandigarh
151	2013-14	Service Tax	Service Tax Act	CESTAT, Chandigarh
152	2011-12	Service Tax	Service Tax Act	CESTAT, Chandigarh
153	2017-18	GST	GST Act (J&K)	Jammu High Court, Jammu
154	2017-18	GST	GST Act (Punjab)	DSTC (Appeal)- Mohali
155	2018-23	ESI Demand	ESI Act	Regional Director (appeal) Aurungabad
156	CA 1076/2019 IN CP(IB)19/Chd/CHD/2018	SIDBI VS MANSA & OTHERS	PROCEEDINGS UNDER SECTION 66/67 OF IBC	NCLT CHANDIGARH
157	CP(IB)19/Chd/CHD/2018	SIDBI VS JALESH GROVER & OTHERS	PROCEEDINGS UNDER SECTION 66/67 OF IBC	NCLT CHANDIGARH
158	CC NO. 2060/2019 & 3250/2019	RAINBOW PAPER VS MANSA (2 CASES)	SECTION 138 of Indian Penal Code 1860	ROHINI COURT DELHI
159	OA/2217/2022	FEDERAL BANK VS MANSA	OA FILED BY FEDERAL BANK FOR RECOVERY	DRT-2, Chandigarh
160	CWP 5283/2022	GOPAL MUNJAL VS IDBI BANK	WRIT AGAINST DECLARATION OF WILLFUL DEFAULT	HIGH COURT CHD
161	CC NO. 9330/2016	DEEPAK GUPTA VS RAKESH KR.BHARDAWAJ & IND SWIFT INFRASTRUCTURE AND DEVELOPERS	SECTION 420 Indian Penal Code 1860	ROHINI COURT DELHI

LIST OF PENDING LITIGATION - TRANSFEREE COMPANY

SR NO.	CASE NO.	NAME OF CASES	PROVISION OF APPLICABLE ACT	PENDING AT
1	CWP-4592/2020 19.02.2020	ISLL VS CENTRAL BANK OF INDIA	Civil Writ Petition under Article 226 of the Constitution of India.	PUNJAB & HARYANA HIGH COURT, CHD
2	CR-1976/2023	ISLL VS PI INDUSTRIES	Civil Revision under Section 115 of C.P.C.	PUNJAB & HARYANA HIGH COURT, CHD
3	MA001102-001107/2022	ISLL JAMMU VS COMMR OF CEN EXE JAMMU	Article 132 of the Constitution of India	SUPREME COURT
4	CRM-M - 31576/2017 27.04.2017	ISLL VS DEPUTY COMMISSIONER INCOME TAX	482 of code of Criminal Procedu	PUNJAB & HARYANA HIGH COURT, CHD
5	CWP-17518/2019 03.07.2019	ISLL VS STATE OF PUNJAB AND ANR. (CWP-17518-2019)	Civil Writ Petition under Article 226 of the Constitution of India.	PUNJAB & HARYANA HIGH COURT, CHD
6	CWP - 28692/28693/2022 12.12.2022	ISLL VS DEPUTY COMMISSIONER INCOME TAX & ORS.	Civil Writ Petition under Article 226 of the Constitution of India.	PUNJAB & HARYANA HIGH COURT, CHD
7	SLP©-034092/2015	ISLL VS STATE OF PUNJAB EXCISE & TAXATION DEPARTMENT	Article 136 of the Constitution of India. Indirect Taxes Matters: Value Added Tax	PUNJAB & HARYANA HIGH COURT, CHD
8	SLP©-034207/2015	ISLL VS STATE OF PUNJAB EXCISE & TAXATION DEPARTMENT	Article 136 of the Constitution of India. Indirect Taxes Matters: Value Added Tax	SUPREME COURT

9	OS-281/2015 03.07.2015	KHANDELWAL EXTRACTION VS ISLL	Order 39 of C.P.C.	CIVIL COURT, KANPUR
10	OA/5314/2017 01.01.2017	EDELWEISS (IFCI) VS ISLL	Section 19 in The Recovery Of Debts Due To Banks And Financial Institutions Act, 1993	DRT 3, CHANDIGARH
11	MCIA/ARB/35/2021 dt.19.01.2021	PI INDUSTRIES LTD. VS ISLL	Section 23 of Arbitration and Conciliation Act, 1996	ARBITRATION
12	CS-319/2020 14.02.2020	MEHUL INTERIORS VS ISLL	Order 7 of C.P.C.	CIVIL JUDGE, CHANDIGARH
13	SLP© NO.13764/2020 19.11.2020	U.T CHD. VS SHIVA TRADERS & ORS	Article 136 of the Constitution of India. Indirect Taxes Matters: Value Added Tax	SUPREME COURT
14	CC-349/2021 16.10.2021	PARDEEP KUMAR V. ISLL	Section 2(3) of Consumer Protection Act, 2019	CONSUMER COURT, PANCHKULA
15	CC-379/2016 22.12.2016	MANJIT KAUR VS ISLL	Section 12 of Consumer Protection Act, 1986	CONSUMER COURT DELHI
16	CC-1378/2014 01.04.2014	DEPUTY COMMISSIONER VS ISLL	Section 276C , Section 278B OF Income Tax Act,1961.	CHIEF JUDICIAL MAGISTRATE,CHD
17		EXCISE & TAXATION DEPARTMENT U.T CHD V. ISLL	ASSESSMENT PROCEEDINGS 2010-2011	SUPREME COURT
18	Investigation/Enquiry		Foreign Exchange Management Act, 1999	Investigation/Enquiry of ED under FEMA, 1999 vide file no. T-3/51/CDZO/2017/Ad(KKK) against the Company
19	Inspection		Inspection under Section 206(5) of the Companies Act, 2013	Office of the Regional Director, Northern Region, MCA, Government of India
20	ISLL/AY 2013-14	E-Assesment for AY 2013-14	Section 148 of Income Tax Act, 1961	Notice issued by Assesing Officer and Company has filed writ petition in Punjab and Haryana High Court, Chandigarh
21	ISLL/AY 2014-15	E-Assesment for AY 2014-15	Section 148 of Income Tax Act, 1961	Notice issued by Assesing Officer and Company has filed writ petition in Punjab and Haryana High Court, Chandigarh
22	ISLL/AY 2023-24	E-Assesment for AY 2023-24	Section 143 (2) of Income Tax Act, 1961	Assesing Officer Range Circle 1(1), Chandigarh
23	10002/10-11	Appeal filed by the Company for AY 2002-03 with CIT(A)	Section 143(3) of Income Tax Act, 1961	Pending with CIT(A), Gurgaon
24	4/2015-16	Appeal filed by the Company for AY 2012-13 with CIT(A)	Section 143(3) of Income Tax Act, 1961	Pending with CIT(A), Gurgaon
25	348289181050521	Appeal filed by the Company for AY 2018-19 with CIT(A)	Section 143(3) of Income Tax Act, 1961	Pending with CIT(A), Gurgaon
26	721341530141022	Appeal filed by the Company for AY 2020-21 with CIT(A)	Section 143(3) of Income Tax Act, 1961	Pending with CIT(A), Gurgaon
27	ST/61588/2018	Service Tax Pay Tech. fees Received	Central Excise and Service Tax, Act	Pending at CESTAT
28	ST/60566/2018	Exp-4	Central Excise and Service Tax, Act	Pending at CESTAT
29	ST/60910/2019	ECB	Central Excise and Service Tax, Act	Pending at CESTAT
30	V(CE)ADC/ADJ/CGST Mohali/DB-1/Ind-Swift(100%EOU)32/2018/2492 &	Destruction of Goods	Central Excise and Service Tax, Act	Pending at CESTAT
31	V(30)15/CE/53/COMM. ADJ./CHD-II/2014/1669 APPL-COMMOCEX/14/2021-GST-APL-LDH	Destruction of Goods	Central Excise and Service Tax, Act	Pending at CESTAT
32	04 Appeals	EXP-4	Central Excise and Service Tax, Act	Pending at CESTAT
33	V(29)ADC/ADJ/CGST Mohali/indswift/DB/09/2018	Denial credit of fire loss	Central Excise and Service Tax, Act	Pending at CESTAT
34	32,31&34 /DCE/DBK/2016	Servcie Tax Retfund	Central Excise and Service Tax, Act	Hearing Attended But Now DC has been changed and fresh hearing letter will be received
35	VIII(30)ICD-DD/TSK/SCN/Ind-Swift/712/2022/10413	Focus market Script	Custom Act	PH attended Pending for Order
36	141/2023-24/P.C. Dhanwaria/AC/Export/ICD/TKD/7213	Drawback	Custom Act	Reply submitted
37	CUS/BRC/SCN/360/2023-BRC/18374	Drawback	Custom Act	PH attended Pending for Order
38	1781/2020-21/DC/NSII/JNCH	Drawback	Custom Act	Case has been remanded back through PMO Complaint, Reply Submitted
39	C-10067/2016	Steam Coal	Central Excise and Service Tax, Act	Remanded back to concerned CESTAT (Main Case pending at Supreme Court)
40	02 Appeal	Product Reg. Charges	Central Excise and Service Tax, Act	Pending at CESTAT
41	03 Case	Capital Goods	Central Excise and Service Tax, Act	Remanded back from CESTAT
42	08 SCN	Denial of Cenvat Credit	Central Excise and Service Tax, Act	Main Case has been in favoured Now that cases has to be dropped
43	245-2477-CE/APPL/CHD/2/2011	Crystal Refund cases	Central Excise and Service Tax, Act	Cases pending due to main case pending at Additional secretary (20.17 Lac amount invloved)
44	V(STC)VCES/Ind Swift/DB/DIVN.23/2013/774	ECB (VCES)	Central Excise and Service Tax, Act	Reply to be filed .
45	C.NO.V(ST)1ADC/Adj/DB/15/C-II/15/3121	EXP-4	Central Excise and Service Tax, Act	Reply filed Order Awaited
46	C.No. V(29)26/HQ/Adj/ADC/CE/J&K/ISL/10/5609	Protective Demand issued in Jammu on 100% refund in PLA	Central Excise and Service Tax, Act	Principal amount deposited
47	C.No. V(30)24/HQ/Adj/ADC/CE/J&K/ISL/2011/1906	Protective Demand issued in Jammu on 100% refund in PLA	Central Excise and Service Tax, Act	Principal amount deposited
48	C.NO:V(30)80/HQ/Adj/CCE/J&k/ISL/2012/8636	Protective Demand Issued in Jammu on 100% refund in PLA	Central Excise and Service Tax, Act	Principal amount deposited

49	Appeal	Menthol Crystal 1:1:25	Central Excise and Service Tax, Act	Pending at Addl. Sec (Refund Already Received)
50	29/AC/R(S)Samba/2020	Refund Rejected	Central Excise and Service Tax, Act	Pending at CESTAT
51	46/AC/R(S)Samba/2020/939	Refund Rejected	Central Excise and Service Tax, Act	Pending at CESTAT
52	V(29)18/DB/R/150/2017/634	Refund Rejection	Central Excise and Service Tax, Act	Reply to be filed (Refund Case Duty deposited in Dashmesh Fire Case)
53	45/AC/CE/SAMBA/19	Excess Refund/ over value Addition	Central Excise and Service Tax, Act	Link with case Pending at CESTAT
54	Din No 20200550ZA0002M7246 /637 dated 15.05.20	Recovey of Refund on Ed Cess & SHE	Central Excise and Service Tax, Act	Reply to be filed during PH
55	WP (C) 125/2023	ISL VS UNION OF INDIA (Wrong Duty Draw back rate in SB)	Goods and Service Tax Act	High Court Jammu
56	WP (c) 1874/2020	ISL VS UNION OF INDIA (Inadmissible credit of PLA in Tran-1)	Goods and Service Tax Act	High Court Jammu
57	AD030724003576A	ISLL VS Joint Commisssioner (GST) (2018-19)	Goods and Service Tax Act	Joint Commissioner-Appeal
58	AD0302230009471	ISL VS Joint Commisssioner (GST) (2017-18)	Goods and Service Tax Act	Joint Commissioner-Appeal
59	151/2023 (2010-11)	ISLL VS Joint Commisssioner (VAT) (2010-11)	Uttrakhand Vat Act	Joint Commissioner-Appeal
60	6148/2017-18 (2010-11)	ISLL VS State of Punjab (2010-11)	Punjab Vat Act	DETC,Appeal
61	CWP 17518/2019	ISLL VS State of Punjab (Duplicate E1 forms)	Punjab Vat Act	Punjab and Haryana High Court
62	Vat Tribunal Chd	ISL VS UT CHANDIGARH (2011-12)	Punjab Vat Act	VAT Tribunal
63	SLPC 13764/2020	ISL VS UT,CHANDIGARH (2010-11)	Punjab Vat Act	SUPREME COURT
64	1937/14.03.2023	ISL Chd VS U.T.Chandigarh (2015-16)	Punjab Vat Act	VAT Tribunal
65	1937/14.03.2023	ISL Chd VS U.T.Chandigarh (2015-16)	Punjab Vat Act	VAT Tribunal
66	Assessing Stage	ISL Chd Vs Assessing Officer (2012-13)	Punjab Vat Act	Assessing Officer (ETO)
67	Assessing Stage	ISL Chd Vs Assessing Officer (2012-13)	Punjab Vat Act	Assessing Officer (ETO)
68	Assessing Stage	ISL Chd Vs Assessing Officer (2013-14)	Punjab Vat Act	Assessing Officer (ETO)
69	Assessing Stage	ISL Chd Vs Assessing Officer (2013-14)	Punjab Vat Act	Assessing Officer (ETO)
70	Assessing Stage	ISL Chd Vs Assessing Officer (2014-15)	Punjab Vat Act	Assessing Officer (ETO)
71	Assessing Stage	ISL Chd Vs Assessing Officer (2014-15)	Punjab Vat Act	Assessing Officer (ETO)
72	CA 1076/2019 IN CP(IB)19/Chd/CHD/2018	SIDBI VS MANSA & OTHERS	PROCEEDINGS UNDER SECTION 66/67 OF IBC	NCLT CHANDIGARH
73	CP(IB)19/Chd/CHD/2018	SIDBI VS JALESH GROVER & OTHERS	PROCEEDINGS UNDER SECTION 66/67 OF IBC	NCLT CHANDIGARH
74	CC NO. 2060/2019 & 3250/2019	RAINBOW PAPER VS MANSA (2 CASES)	SECTION 138 of Indian Penal Code 1860	ROHINI COURT DELHI
75	OA/2217/2022	FEDERAL BANK VS MANSA	OA FILED BY FEDERAL BANK FOR RECOVERY	DRT-2, Chandigarh
76	CWP 5283/2022	GOPAL MUNJAL VS IDBI BANK	WRIT AGAINST DECLARATION OF WILLFUL DEFAULT	HIGH COURT CHD
77	CC NO. 9330/2019	DEEPAK GUPTA VS RAKESH KR.BHARDWAJ & IND SWIFT INFRASTRUCTURE AND DEVELOPERS	SECTION 420 Indian Penal Code 1860	ROHINI COURT DELHI

(xvii) No winding up or insolvency petition has been admitted against any of the Applicant Companies. No investigation or proceedings under the provision of the erstwhile Companies Act, 1956 or the present Companies Act, 2013 have been initiated or are pending in relation to any of the Applicant Companies.

(xviii) The Applicant Companies have not filed any such or similar Petitions earlier on the same cause of action either before this Court or any other Court.

(xix) The Scheme is not prejudicial to the interest of the Equity Shareholders/ Preference Shareholders (wherever applicable) or the Creditors of the

Applicant Companies and will be beneficial to the Applicant Companies and their respective Shareholders and Creditors.

(xx) As on 30.06.2024, the Transferor Company has 17,734 Equity Shareholders as per the certified list of the Equity Shareholders & their shareholding pattern as on 30.06.2024 annexed as Annexure A-4 with the Application. Since the Transferor Company is a listed Company, therefore, it is apposite to hold the meeting of its Equity Shareholders.

(xxi) As on 30.06.2024, the Transferor Company has 5 Preference Shareholders as per the list of Preference Shareholders annexed as Annexure A-5 with the Application. The Transferor Company circulated the copy of the Scheme to its Preference Shareholders and all the Preference Shareholders have given their consent in writing by way of affidavit to the proposed Scheme. In view of the consents of the said Preference Shareholders, Transferor Company is seeking dispensation with the requirement of convening the meeting of its Preference Shareholders. The consents by way of Affidavits of the Preference Shareholders are annexed as Annexure A-6 with the Application.

(xxii) As on 30.06.2024, the Transferor Company has 2 Secured Creditors amounting to Rs.826,46,16,535/- as per the list of Secured Creditors as on 30.06.2024, annexed as Annexure A-7 with the Application, alongwith the certificate of the Statutory Auditor certifying the same. The Transferor Company circulated the copy of the Scheme to its Secured Creditors and all the Secured Creditors of the Transferor Company have given their consent in writing by way of affidavit to the proposed Scheme. In view of the consents of the said Secured Creditors, Transferor Company is seeking

dispensation with the requirement of convening the meeting of its Secured Creditors. The consents by way of Affidavits of the Secured Creditors are annexed as Annexure A-8 with the Application.

(xxiii) As on 30.06.2024, the Transferor Company has 2,314 Unsecured Creditors amounting to Rs.407,92,23,019 as per list of the Unsecured Creditors as on 30.06.2024 annexed as Annexure A-9 with the Application.

(xxiv) As on 30.06.2024, the Transferee Company has 25,968 Equity Shareholders as per the list of the Equity Shareholders & their shareholding pattern as on 30.06.2024 annexed as Annexure A-17 with the Application. Since the Transferee Company is a listed Company, therefore, it is apposite to hold the meeting of its Equity Shareholders.

(xxv) As on 30.06.2024, the Transferee Company has 2 Secured Creditors amounting to Rs.2,86,77,407/- as per the list of Secured Creditors, annexed as Annexure A-18 with the Application, as on 30.06.2024 alongwith the certificate of the Statutory Auditor certifying the same. The Transferee Company circulated the copy of the Scheme to its Secured Creditors and all the Secured Creditors have given their consent in writing by way of affidavit to the proposed Scheme. In view of the consents of the said Secured Creditors, the Transferee Company is seeking dispensation with the requirement of convening the meeting of its Secured Creditors. The consents by way of Affidavits of the Secured Creditors are annexed as Annexure A-19 with the application.

(xxvi) As on 30.06.2024, the Transferee Company has 960 Unsecured Creditors amounting to Rs.51,47,76,603/- as per the list of the Unsecured Creditors

as on 30.06.2024, annexed as Annexure A-20 with the Application alongwith the certificate of the Statutory Auditor certifying the same.

(xxvii) The Applicant Companies have furnished the status of consent of the Equity Shareholders, Preference Shareholders, Secured Creditors and Unsecured Creditors as below:

Particulars	**Transferor Company**		**Transferee Company**	
	Nos.	**Status of Consent**	**Nos.**	**Status of Consent**
Equity Shareholders	17,734	Holding of Meeting prayed for	25,968	Holding of Meeting prayed for
Preference Shareholders	5	100%	NIL	N/A
Debenture Holders	NIL	N/A	NIL	N/A
Secured Creditors	2	100%	2	100%
Unsecured Creditors	2314	Holding of Meeting prayed for	960	Holding of Meeting prayed for

ANALYSIS AND FINDINGS

5. Since this Application is for seeking order for dispensation/ convening of the meetings of Equity Shareholders, Preference Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Companies, the analysis has been restricted to that and other issues including pending litigation against the Transferor Company would be analysed at the time of the Second Motion Company Petition of the Applicant Companies.

6. During the course of hearing held on 25.10.2024, it was observed that the liability side of the Balance Sheet is not matching with the figures shown in the list of Creditors upon which, it was stated that the notice may be given to all the Creditors, person/ entity having liability on the Companies either on the basis of Provisional Balance Sheet filed with the petition or on the basis of Provisional Balance Sheet duly certified by the Chartered Accountant as on the date of the order.

7. On further examination of the Provisional Balance Sheet as on 30.06.2024 filed by the Applicant Companies, it was noted that the amount of the Secured Creditors as on 30.06.2024 as per the list matched with the Secured Creditors as per the Provisional Balance Sheet as on 30.06.2024 as shown in the Table below:

TRANSFEROR COMPANY	
Secured Creditors as on 30.06.2024 as per the list	**Rs.**
Ind Swift Laboratories Limited	8,24,60,34,471
Piramal Capital and Housing Finance Limited	1,85,82,064
Total	**8,26,46,16,535**
As per Provisional Balance Sheet as on 30.06.2024	**Rs. Lakh**
Note No.11- Borrowings (Non-Current)– Secured Loans- Term Loan	
From Financial Institution/ Assets Reconstruction Companies (ARC)	185.82
Loan from Related Party	82,460.34
Total	**82,646.16**
TRANSFEREE COMPANY	
Secured Creditors as on 30.06.2024 as per the list	**Rs.**
Axix Bank Limited	1,88,60,664
Mercedes-Benz Financial Services India	98,16,743
Total	**2,86,77,407**
As per Provisional Balance Sheet as on 30.06.2024	**Rs. Lakh**
Note No. XIII- Non-Current Liabilities- Financial Liabilities- Borrowings - Secured Loans	
Vehicle Loans	**286.77**

In view of the above, we do not consider it appropriate to issue notice to the Secured Creditors and convene the meeting thereof and are inclined to consider the request of the Applicant Companies to dispense with the meetings of the Secured Creditors. However, we consider it appropriate that the notice of the meetings to be convened of the Unsecured Creditors of the Applicant Companies may be given to all the person/ entity having liability on the respective Applicant Companies, except Secured Creditors on the basis of Provisional Balance Sheet as on 30.06.2024.

8. It is also noted that as per the Provisional Balance Sheet as on 30.06.2024 of the Transferor Company, the other payable are Rs.4104.24 lakh, which include the statutory dues also. It is also noted that Independent Auditors' Report on the Standalone Financial Statements of the Transferor Company for the year ended 31.03.2024 has also pointed that there are some undisputed statutory dues outstanding for a period more than six months from the date they became payable as at the year end, which are Provident Fund Rs.107.90 lakhs, Employees State Insurance for Rs.22.74 lakhs, Estate Duty Rs.43.0 lakhs. In view of the above, we consider it appropriate to issue the notice to the Authorities, whose statutory dues are payable as per the Provisional Balance Sheet as on 30.06.2024.

9. The Applicant has sought the exemption for issuing the notice to CCI based on the Clause 10 of the Competition (Criteria for Exemption of Combinations) Rules, 2024 on the plea that both the Applicant Companies falls within the same group. However, they have not explained in the affidavit, how both the companies would fall under the definition of "Group" as per the provisions of the Competition Act, 2002. Therefore, we also consider it appropriate to issue notice to the CCI.

10. It is noted that the BSE in its Observation letter dated 30.09.2024 has also stated as below:

Accordingly, based on aforesaid comment offered by SEBI, the company is hereby advised:

- To provide additional information, if any, (as stated above) along with various documents to the Exchange for further dissemination on Exchange website.
- To ensure that additional information, if any, (as stated aforesaid) along with various documents are disseminated on their (company) website.
- To duly comply with various provisions of the circulars.

In light of the above, we hereby advise that we have no adverse observations with limited reference to those matters having a bearing on listing/de-listing/continuous listing requirements within the provisions of Listing Agreement, so as to enable the company to file the scheme with Hon'ble NCLT.

Further, where applicable in the explanatory statement of the notice to be sent by the company to the shareholders; while seeking approval of the scheme, it shall disclose information about unlisted company involved in the format prescribed for abridged prospectus as specified in the circular dated June 20, 2023.

Kindly note that as required under Regulation 37(3) of SEBI (Listing Obligations and Disclosure Requirements) Regulations, 2015, the validity of this Observation Letter shall be six months from the date of this Letter, within which the scheme shall be submitted to the NCLT.

The Exchange reserves its right to withdraw its 'No adverse observation' at any stage if the information submitted to the Exchange is found to be incomplete / incorrect / misleading / false or for any contravention of Rules, Byelaws and Regulations of the Exchange, Listing Agreement, Guidelines/Regulations issued by statutory authorities.

Please note that the aforesaid observations do not preclude the Company from complying with any other requirements.

Further, it may be noted that with reference to Section 230 (5) of the Companies Act, 2013 (Act), read with Rule 8 of Companies (Compromises, Arrangements and Amalgamations) Rules 2016 (Company Rules) and Section 66 of the Act read with Rule 3 of the Company Rules wherein pursuant to an Order passed by the Hon'ble National Company Law Tribunal, a Notice of the proposed scheme of compromise or arrangement filed under sections 230-232 or Section 66 of the Companies Act 2013 as the case may be **is required to be served upon the Exchange seeking representations or objections if any.**

In this regard, with a view to have a better transparency in processing the aforesaid notices served upon the Exchange, the Exchange has **already introduced an online system of serving such Notice along with the relevant documents of the proposed schemes through the BSE Listing Centre.**

Any service of notice under Section 230 (5) or Section 66 of the Companies Act 2013 seeking Exchange's representations or objections if any, **would be accepted and processed through the Listing Centre only and no physical filings would be accepted.** You may please refer to circular dated February 26, 2019 issued to the company.

The Applicant Companies are directed to comply with the above directions of the BSE and NSE In view of the above, the notice to BSE and NSE needs to be served as per the prescribed mode mentioned in their Observations letter.

11. It is noted from the Index of Charges in the Master Data of the Transferor Company annexed with the Application, the following charges are yet to be satisfied:

Index of Charges

Sr. No	SRN	Charge Id	Charge Holder Name	Date of Creation	Date of Modification	Date of Satisfaction	Amount	Address	Whether charge registered by other entity	Asset Holder Name
1	AA7697202	100907836	IND SWIFT LABORATORIES LIMITED	30/03/2024	-	-	8,15,68,00,000	SCO 850, SHIVALIK ENCLAVE, NAC, MANIMAJRA,Chandigarh, Chandigarh, Chandigarh, India, 160101	No	-
2	AA4062841	100770148	PIRAMAL CAPITAL & HOUSING FINANCE LIMITED	04/08/2023	-	-	50,00,000	601,6th Floor,Amiti Bldg,Agastya Corporate Park Kamani Junction,Opp.Fire Station,LBS Mar,g,Kurla(W),Mumbai, Mumbai, Maharashtra, India, 400070	No	-
19	B17841420	10299577	First Blue Home Finance Limited	30/07/2011	-	-	2,00,00,000	12C - 12D, 2nd Floor, Vasant Square Mall,Plot - A, Sector B, Pocket - V, Vasant Kunj,New Delhi, Delhi, India, 110070	No	-
58	Y10274147	90172248	CENTURIAN BANK LTD.	18/11/2004	-	-	4,00,000	SECTOR 9,CHANDIGARH, Chandigarh, India,	No	-

12. It is noted that Independent Auditors' Report on the Standalone Financial Statements of the Transferor Company for the year ended 31.03.2024 contain Emphasis of Matters and other observations as below:

Emphasis of Matters

Without qualifying our opinion, we draw attention to the following matters in the Notes to the financial statements:

a) Emphasis is drawn upon Note No. 2.3 and Note No. 34 of the accompanying standalone financial statements, during the year, the company has sold its shareholding of 9499720 Equity Shares in M/s Ind-Swift Laboratories Limited (related party) to M/s Essix Biosciences Limited (related party) at Rs. 101.00/- per share recording a profit of Rs. 43.47 Crore.

b) Emphasis is drawn upon Note No. 11.1 of the accompanying standalone financial statements, where M/s Ind-Swift Laboratories Limited (ISLL) (related party) has entered into an agreement with M/s Ind-Swift Limited (ISL) on 30-03-2024 for the revival of ISL and offered to become Resolution Sponsor of the company. ISLL has taken over the loan assigned by various banks to EARC by settling the total debts payable by ISL at Rs. 352.60 Crore. The loan of Rs. 815.77 Crore has been taken over by ISLL from ISL and the same is payable by ISL under the agreed terms as Rs. 352.60 Crore as sustainable debt repayable in 9 years (including 15 months moratorium) at the rate of 10% p.a. and balance Rs. 463.17 Crore as unsustainable debt in the form of Zero Coupon Bond (ZCD) to be waived off in case of successful payment of sustainable debt.

c) Emphasis is drawn upon Note No. 11.5 and Note No. 16.1 of the accompanying standalone financial statements, unsecured loan worth Rs. 166.11 Crore and credit balance worth Rs. 112.66 Crore payable to ISLL (related party) as on 18th March 2024 has been transferred to Synthimed Labs Private (SLPL) Limited as per the Business Transfer Agreement (BTA) signed between ISLL and SLPL, where all the right and ownership of the balances payable to ISLL as on 18th March 2024 has been transferred to SLPL as per the terms of Slump Sale deal between ISLL and SLPL.

d) Emphasis is drawn upon Note No. 35(I) and 35(II) of the accompanying standalone financial statements, the company has sold its Plant & Machinery under the name of Unit -III Baddi to ANG Lifesciences for Rs. 5.44 Crore and Unit IV Baddi to Kuldeep Kaur for Rs. 2.39 Crore.

e) Emphasis is drawn upon Note No. 38 of the accompanying standalone financial statements, which describes that despite assignment of Central Bank of India debt to ARC, the bank has not withdrawn its notice declaring company and its directors as Wilful defaulters. Legal suits have been filed for the withdrawal of the same and the matter is subjudice.

It is noted that some of the above observations appears to have the significant bearing, and would be required to be examined at the time of Second Motion Company Petition.

13. It is noted that Independent Auditors' Report on the Standalone Financial Statements of the Transferee Company for the year ended 31.03.2024 contain Emphasis of Matters and other observations as below:

Emphasis of Matters

Without qualifying our opinion, we draw attention to the following matters in the Notes to the financial statements:

a) Emphasis is drawn upon Note No. XXXI of the accompanying standalone financial statements, the company has entered into Business transfer agreement with M/s Synthimed Labs Private Limited (SLPL) under the scheme of slump sale for a consideration of Rs. 1650 Crore and accordingly transferred all the assets and liabilities to SLPL as per scheme of transfer as on 18th March 2024.

b) Emphasis is drawn upon Note No. V of the accompanying standalone financial statements, M/s Ind-Swift Laboratories Limited (ISLL) has acquired a loan for Rs. 352.60 crores from Edelweiss, a lender, in relation to the loan provided to Indswift Ltd along with all other rights and unsustainable debt of Rs. 463.17 in terms of the Loan Agreement with Ind-Swift dated 30.03.2024. The unsustainable part/zero coupon debt is payable fully in case of default in repayment of the term loan facility and to be waived off on the successful repayment of the term loan facility.

Under the principles of Ind AS 37, "Provisions, Contingent Liabilities and Contingent Assets," the additional rights to recover unsustainable debt is recognized as a contingent asset. This is based on the possibility of future economic benefits that may arise if certain conditions are met. As such, the unsustainable debt, which is a zero coupon debt; which will be waived off on timely repayment of the loan facility, is disclosed as a contingent asset in the balance sheet.

"Our opinion is not modified in respect of the above matters".

(c) There are certain title deeds of immovable properties (other than properties where the company is the lessee and the lease agreements are duly executed in favour of the lessee) disclosed in the financial statements which are not held in the name of the Company. Details are as below:

Description of property	Gross carrying value	Held in name of	Whether promoter, director or their relative or employee	Period held – indicate range, where appropriate	Reason for not being held in name of company*
Investment property - offices no 102 & 103	289.21 Lakhs	Sh. N.R.MUNJAL	Managing Director	Office 102 & 103 04/March/2011	The Offices No. 102 &103 were purchased in the name of Sh.N.R.Munjal Managing Director and subsequently these were taken over by the Company, but due to stay by Hon'ble Bombay High court on the transfer of all the offices of the said building the same is held through Power of Attorney only.

14. It is also noted from the Standalone Financial Statements of the Transferee Company for the year ended 31.03.2024 that during the year 2023-24, Transferee Company has transferred all assets and liabilities pertaining to the business undertaking of the API and CRAMS business to Synthimed Labs Pvt. Ltd as a slump sale as going concern basis, for consideration of 1674.09 crores plus Rs.77.77 crores. Due to above sale, most of the assets and liabilities have either reduced to zero or substantially reduced as shown below:

IND-SWIFT LABORATORIES LIMITED

STANDALONE BALANCE SHEET AS ON 31st , March 2024

PARTICULARS	Note No.	As at 31.03.2024	As at 31.03.2023
		Rs. in Lacs	
ASSETS			
Non-current assets :			
Property, Plant and Equipment	I	532.48	58,315.11
Right of Use - Land		-	185.05
Capital work-in progress		-	770.77
Investment property	J	229.91	242.48
Intangible assets under development		-	-
Financial Assets			
a) Investments	II		
- In subsidiaries and associates		8,055.25	7,943.25
- In Others		8,539.24	568.80
b) Other Non-current Financial Assets	III	41.05	314.28
Deferred tax assets (net)	IV	3,183.88	2,985.09
Other non-current assets	V	35,343.09	95.60
TOTAL NON-CURRENT ASSETS		55,924.83	71,420.44
Current Assets			
Inventories	VI	-	42,754.39
Financial Assets			
(a) Trade receivables	VII	10,660.13	46,949.30
(b) Cash and cash equivalents	VIII	42,572.92	995.71
(c) Other current financial Assets	IX	-	2,696.96
Other current assets	X	1,320.62	13,871.01
Assets held-for-sale		-	139.51
TOTAL CURRENT ASSETS		54,553.68	107,406.87
GRAND TOTAL		110,478.51	178,827.31
EQUITY AND LIABILITIES			
Equity			
(a) Equity Share capital	XI	5,908.69	5,980.58
(b) Other Equity	XII	86,315.53	61,554.20
TOTAL EQUITY		92,224.21	67,534.78
LIABILITIES			
Non-current liabilities			
Financial Liabilities	XIII		
(a) Borrowings		299.64	74,443.34
(b) Lease Liabilities		-	53.25
Non-Current Provisions		122.64	1,778.88
Other Non current Liabilities		-	12.34
TOTAL NON- CURRENT LIABILITIES		422.28	76,287.82
Current liabilities			
Financial Liabilities	XIV		
(a) Borrowings		531.83	10,878.69
(b) Trade payables	XV		
MSME		-	189.62
Others		6,391.05	19,123.04
(c) Other Financial Liabilities	XVI	-	498.14
Current Provisions		10,088.66	1,187.35
Other current liabilities	XVII	820.47	3,127.88
TOTAL CURRENT LIABILITIES		17,832.02	35,004.72
GRAND TOTAL		110,478.51	178,827.31

15. It is noted that there are 161 pending litigations against the Transferor Company, which includes Proceedings under Code of Criminal Procedure, Indian Penal Code, Section 138 of Negotiable Instrument Act 1881 and section 66/67 of the Insolvency and Bankruptcy Code, 2016. It is noted that there are 77 pending litigations against the Transferee Company, which includes Investigations/ enquiry against Foreign Exchange Management Act 1999, Inspection under section 206 of the Companies Act 2013 and Proceedings under Code of Criminal Procedure, Indian Penal Code, Section 138 of Negotiable Instrument Act 1881 and section 66/67 of the Insolvency and Bankruptcy Code, 2016.

DIRECTIONS

16. Accordingly, the directions of this Bench in the present case are as under:

I. The separate meetings of the Equity Shareholders of Transferor Company and Transferee Company be convened as prayed for, on such date, time and venue either personally/ physically or through video conferencing with facility of remote e-voting, as decided by the Chairperson with the consent of Alternate Chairperson and Scrutiniser, subject to individual notices of the meeting being issued.

The quorum of the meeting of the Equity Shareholders shall be 7094 in number for Transferor Company and 10387 in number for Transferee Company or 51% in value of the Equity Share Capital of the respective Companies. The proxy(ies) will not be counted for the calculation of the quorum for the above meetings of the Equity Shareholders. In case, the quorum is not present within half an hour from the time appointed for holding the meeting of Equity Shareholders, then the Chairman shall adjourn the

meeting to the same day in the next week at the same time and place. The intimation about the adjourned meeting should be given to each member, as the case may be, through e-mail or by any other mode. If the quorum is still not present on such adjourned date, then the Chairman may furnish a report to that effect to this Tribunal within seven days thereafter;

II. The meeting of Preference Shareholders of the Transferor Company is dispensed herewith, keeping in view the shareholding and ownership pattern and the fact that 100% Preference Shareholders have given their consents by way of affidavits;

III. The meeting of the Secured Creditors of the Transferor Company and Transferee Company is dispensed herewith, keeping in view that the all the Secured Creditors of respective Companies constituting 100% of the secured credit, have given its consent by way of affidavit.

IV. The meeting of Unsecured Creditors of the Transferor Company and Transferee Company be convened as prayed for, on such date, time and venue either personally/ physically or through video conferencing with facility of remote e-voting, as decided by the Chairperson with the consent of Alternate Chairperson and Scrutiniser, subject to individual notices of the meeting being issued.

The quorum of the meeting of the Unsecured Creditors shall be 51% both in number and value of the Unsecured Creditors of the respective companies. The proxy(ies) will not be counted for the calculation of the quorum for the above meetings. In case the required quorum as noted above for the meeting of the Unsecured Creditors is not present at the

commencement of the meeting, the meeting shall be adjourned by 30 minutes and thereafter the persons present and voting shall be deemed to constitute the quorum.

V. Mr. Amit Chaudhary, Ad. AG, Address: Flat No.A-12, Uppal Marble Arch, Near Housing Board Chowk, Manimajra, U.T. Chandigarh Mobile No. 92167786611 , email id: amitchaudhary02@gmail.com is appointed as the Chairperson for meetings to be convened under this order. An amount of Rs.1,50,000/- (Rupees One Lakh Fifty Thousand Only) be paid for his services as the Chairperson.s

VI. Mr. Shikhar Sarin, Advocate, Address: House No.48, Sector-4, Chandigarh-160001, Mobile No.8054126678 email id: shikharsarin1@gmail.com is appointed as the Alternate Chairperson for the meetings to be convened under this order. An amount of Rs.1,00,000/- (Rupees One Lakh Only) be paid for his services as the Alternate Chairperson.

(I) Mr. Salil Yadav, Chartered Accountant, Address: SCO 13(2nd floor) Industrial Area, Phase-9, Mohali-160062, Mobile No. .7814036887 email id: casalilyadav@gmail.com is appointed as the Scrutinizer for the above meetings to be convened under this order. An amount of Rs.75,000/- (Rupees Seventy Five Thousand Only) be paid for her services as the Scrutinizer.

VII. The fee of the Chairperson, Alternate Chairperson and Scrutinizer and other out of pocket expenses for them shall be borne by the Applicant Companies.

VIII. The individual notices of the above meetings shall be served, to all the Equity Shareholders, and Unsecured Creditors (all the persons/ entities having liabilities on the respective Applicant Companies, except Secured Creditors on the basis of Provisional Balance Sheet as on 30.06.2024) of the Applicant Companies through registered post or speed post or through courier or e-mail, 30 days in advance before the schedule date of meeting, indicating the day, date, place and time as aforesaid, together with a copy of the Scheme, copy of explanatory statement with Valuation Report and any other documents, as may be prescribed under the Act, in the same manner as the notices shall be served to various authorities as per Section 230(5) of the Companies Act, 2013 read with Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016. It is clarified that the notice of meetings published in the newspapers will not be deemed to be the notice to the Equity Shareholders, Preference Shareholders, and Unsecured Creditors.

IX. The Audited Financial Statements of Applicant Companies as on 31.03.2024 and the provisional accounting statement on a subsequent date in terms of Section 232(2)(e) of the Act be also circulated for the aforesaid meetings.

X. Along with the notices, the Applicant Companies shall also send, statements explaining the effect of the scheme on the creditors, key managerial personnel, promoters and non-promoter members, etc. along with the effect of the scheme on any material interests of the Directors of the Company or

the debenture trustees if any, as provided under sub-section (3) of Section 230 of the Act.

XI. The Applicant Companies shall publish an advertisement with a gap of at least 30 clear days before the aforesaid meeting, indicating the day, date, place and the time of the meeting as aforesaid, in newspaper namely; “Financial Express” (English Language, Chandigarh Edition) in English Language and “Dainik Bhaskar” (Hindi Language, Chandigarh Edition) in Hindi language. It be stated in the advertisement that the Copies of the Scheme, Explanatory Statements etc. are required to be published pursuant to Section 230 to 232 of the Act. The advertisement shall also indicate that the explanatory statement required to be furnished pursuant to Sections 230 & 232 can be obtained free of charge at the registered office of the Applicant Companies. The Applicant Companies shall also publish the notice on their website, if any.

XII. It shall be the responsibility of the Applicant Companies to ensure that the notices are sent under the signature and supervision of the authorized representative of the company on the basis of Board resolutions and that they shall file their affidavits in the Tribunal at least ten days before the date fixed for the meeting.

XIII. Voting shall be allowed on the “Scheme” through electronic means which will remain open for a period as mandated under Clause 8.3 of Secretarial Standards on General Meetings to the Applicant Company under the Act and the Rules framed there under.

XIV. The Scrutinizer's report will contain his/ her findings on the compliance to the directions above.

XV. The Chairperson shall be responsible to report the result of the meeting to the Tribunal in Form No. CAA-4, as per Rule 14 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 within 7 (seven) days of the conclusion of the meeting. The Chairperson would be fully assisted by the authorized representative/Company Secretary of the Applicant Company and the Alternate Chairperson. The Scrutinizer will assist the Chairperson and Alternate Chairperson in preparing and finalizing the report.

XVI. The Applicant Companies shall individually and in compliance of sub-Section (5) of Section 230 of the Act and Rule 8 of Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 send notices in Form No. CAA-3 along with copy of the Scheme, Explanatory Statement and the disclosures mentioned in Rule 6 of the "Rules" to the (i) Central Government through the Regional Director (Northern Region), Ministry of Corporate Affairs, New Delhi; (ii) Registrar of Companies, Punjab and Chandigarh; (iii) Official Liquidator attached to Punjab and Haryana High Court; (iv) Income Tax Department through the Nodal Officer – Principal Commissioner of Income Tax, NWR, Aayakar Bhawan, Sector 17-E, Chandigarh by mentioning the PAN number of the Applicant Companies; (v) BSE Limited; (vi) National Stock Exchange of India Limited; (vii) Securities and Exchange Board of India (viii) Drug Controller of India (ix) Competition Commission of India (x) Reserve Bank of India; (xi) Authorities

to whom the Statutory dues are payable as per the Provisional Balance Sheet as on 30.06.2024 of the Applicant Companies and (xii) such other Sectoral Regulator(s) governing the business of the Applicant Companies, if any, stating that report on the same, if any, shall be sent to this Tribunal within a period of 30 days from the date of receipt of such notice and copy of such report shall be simultaneously sent to the applicant company, failing which it shall be presumed that they have no objection to the proposed Scheme.

XVII. The Applicant Companies shall furnish a copy of the Scheme free of charge within one day of requisition for the Scheme made by any Creditor or Member/Shareholder entitled to attend the meeting as aforesaid.

XVIII. The authorized representative of the Applicant Companies shall furnish an affidavit of service of notice of meeting and publication of advertisement and compliance of all directions contained herein at least a week before the proposed meeting.

XIX. All the aforesaid directions are to be complied with strictly in accordance with the applicable laws including forms and formats contained in the Rules as well as the provisions of the Companies Act, 2013 by the Applicant Companies.

17. With the aforesaid directions, this First Motion Company Application stands allowed by giving liberty to the Applicant Companies to file Second Motion Company Petition in accordance with Rule 15 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016. A copy of this order be supplied to the learned

counsel for the Applicant, who in turn shall supply a copy of the same to the Chairperson, Alternate Chairperson and the Scrutinizer immediately.

Sd/-
Umesh Kumar Shukla
Member (Technical)

Sd/-
Harnam Singh Thakur
Member (Judicial)

January 03, 2025
Vishesh